Data Sharing Agreement – Youth Offending Service

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1. Introduction to the Sharing

This Data Sharing Agreement [DSA] documents how the parties to this agreement, being London local authorities including City of London Corporation, the Metropolitan Police, the City of London Police, and the London Probation Service, as listed in Appendix A, as will share information about the full range of Youth Offending Services [YOS] to allow each party to undertake their roles in YOS matters. By signing this Agreement, the named agencies agree to accept the conditions set out in this document, according to their statutory and professional responsibilities, and agree to adhere to the procedures described.

It should be noted that this DSA does not include sharing with the Youth Justice Liaison and Diversion service which is subject to separate arrangements. It does not cover sharing between individual councils, or councils and local bodies, which will be subject to local arrangements.

This Agreement has been developed to:

- Define the specific purposes for which the signatory agencies have agreed to share information.
- Outline the Personal, Special Category and Criminal Data to be shared.
- Set out the lawful basis conditions under UK GDPR and Data Protection Act 2018 through which the information is shared, including reference to the Human Rights Act 1998 and the Common Law Duty of Confidentiality.
- Stipulate the roles and procedures that will support the processing/sharing of information between agencies.
- Describe how the rights of the data subject(s) will be protected as stipulated under the data protection legislation.
- Describe the security procedures necessary to ensure that compliance with responsibilities under data protection legislation and agency-specific security requirements.
- Describe how this arrangement will be monitored and reviewed.
- To illustrate the flow of information from referral through processing and outcome.

Parties to this agreement cannot amend or add appendices unless agreed as part of a formal review. It is expected that each party will have procedures, processes and policies sitting underneath this agreement, for their respective organisations. These will, for example, describe the specific processes for secure transfer of data.

1.1. Ownership of this agreement

This agreement was drafted by a working group of representatives of the Metropolitan Police, local authorities and London Councils. These professionals were specialists in YOS, police procedures, probation, information governance and law. The local authority representatives worked under the banner of the Information Governance for London Group (IGfL), to draft one agreement that would work for all boroughs, Probation Services, and Metropolitan Police BCUs, and City Of London Police across London. The aim is to reduce the number of versions of sharing agreements that historically differed between

boroughs, partly to reduce the burden on pan-London organisations that must have agreements with multiple boroughs.

IGfL, a group of information and security professionals at London boroughs, assisted with coordination of this agreement, but the responsibilities within it, and compliance with data protection legislation, remain with the listed data controllers.

1.2. Responsibilities of parties involved

The parties are registered Data Controllers under the Data Protection Act. Signatories are identified as those who have signed this agreement on the platform on which this agreement is hosted (expected to be the Information Sharing Gateway). A list of signatories is at Appendix A.

All parties confirm that they comply with data protection legislation by:

- having a lawful basis for processing and sharing personal data.
- ensuring data quality.
- storing and sharing information securely, with access management controls.
- having policies and procedures for compliance with data protection legislation including for managing data subject rights and complaints, identifying and managing data breaches/incidents and retention & disposal.
- ensuring that mandatory training is undertaken regularly by their employees to ensure they are clear and up to date on their responsibilities. Every individual must uphold the principles of this agreement and overarching confidentiality, and seek advice from the relevant Data Protection Officer when necessary.
- undertaking appropriate data protection due diligence checks with any contractors/data processors they employ, and ensuring that a written agreement is in place with each data processor, and that all data processors will be bound by this agreement.
- having written processes for the processing of data to ensure employees use and share personal data in line with data protection law, the data protection principles, and this agreement.

Organisations and their staff must consult the organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian if they are unsure at any point in the processing and sharing of personal data.

1.3. Confidentiality and vetting

Each Partner must ensure that there are appropriate written contracts or agreements with employees, agency staff, volunteers etc. These must include requirements to ensure compliance with policies which include confidentiality.

Each Partner must ensure that suitable vetting has taken place. This may be through standard employee checks (BPSS or equivalent), DBS, Security Vetting or Counter Terrorist Check [CTC].

1.4. Assessment and review

A review of this information sharing agreement will take place after 6 months of implementation and then annually thereafter, unless otherwise agreed by the organisations' Data Protection Officers. The aim of the review will be to ensure the purposes are still relevant, the scope has not slipped, the benefits to the data subjects and organisations are being realised, and the procedures followed for information security are effective.

Changes in legislation and developments in the areas of public sector data sharing will be considered as and when they arise, as will any changes to the signatory parties.

The working group who drafted this agreement strongly recommends that a working group approach is used for any reviews, as this was a successful way to achieve pan-London and cross-specialism consensus to one sharing agreement.

1.5. Termination of agreement

In the event of termination of this agreement each party may continue to hold information originating from other parties for which they are the Data Controller.

1.6. Outside of this agreement

There are multiple other information sharing arrangements that form part of the duties of the parties and involve similar data for often similar overall purposes, like safeguarding and preventing crime. A non-exclusive list is below. Some of these are live, others are currently in draft.

Information sharing covered by other DSAs falls outside of the scope of this DSA. Of particular importance and relevance to the scope of sharing covered by this DSA are the MAS/MASH, Gangs, and Adult Safeguarding DSAs. Information sharing covered by those DSAs (in particular) is outside the remit of this DSA. For the avoidance of doubt therefore, information shared between councils or between councils and other parties for safeguarding purposes will fall under the MAS or Adult Safeguarding DSAs and NOT this YOS DSA

Area of work	Description
ASB	The sharing of data regarding anti-social behaviour and related enforcement
MAPPA - Multi-Agency Public Protection Arrangements.	Information sharing between probation, police, councils and other agencies as mandated under MAPPA for the most serious risk posing offenders
Prevent/Channel Panel	The PREVENT strategy and Channel Panel are aimed at reducing the risk of radicalisation of young persons

Area of work	Description
Rescue & Response (County Lines)	The exploitation of persons to sell and move drugs between areas, commonly known as “county lines” is a major element of modern exploitation of young persons and in some cases, modern slavery.
IOM	Integrated Offender Management (IOM) tackles the most prolific reoffenders and those who commit offences deemed to have the most significant impact on the local community.
MAS/MASH	The multi-agency safeguarding DSA covers children’s safeguarding, well-being, and MACE sharing.
Licensing	This covers sharing for all licensing including alcohol, gambling, special treatments and sexual entertainment venues, and various other areas such as pet shops and highways licenses
Gangs/Serious Youth Violence (SYV)	The gang and serious youth violence projects are part of specific police-led initiatives. There are 2 agreements: one councils/police, and one council to council.
Residual crime	A local BCU signed DSA to cover lower-level crime not covered in other DSAs such as caution registers, nuisance, persons posing a risk to themselves, and other criminal issues.
Domestic Abuse Multi-Agency Risk Assessment Conference (MARAC)	Domestic abuse and violence against women and girls have complex roots, and as such commonly involve police, social care, health, voluntary and faith organisations in case management.
Adult Safeguarding	Safeguarding of adults vulnerable to physical, emotional, exual, psychological, or financial abuse, and at risk of becoming victims of scams, cuckooing and such like
Troubled Families/Supporting Families	Troubled families was an early intervention programme created by central government to support families to reduce anti-social and criminal behaviour.
CCTV	The sharing between councils and police of CCTV footage, whether live feed or recorded, and from any type of device including cameras, drones and vehicle CCTV
Environmental Crime	There are two agreements, one between councils and the Environment Agency covering crime that the EA handles, the other is between councils for a wider range of environmental related crime such as fly-tipping, dog fouling etc
Trading Standards	This covers information sharing between the police and National Trading Standards London Region, and between the police and local councils for the whole range of trading standards related activity such as scams, rogue traders etc

Area of work	Description
People Affected By An Emergency	Sharing between agencies including councils, police, and London Ambulance and London Fire and Civil Defence Authority to handle the immediate and longer term response to emergencies such as floods, civil disturbances, attacks etc

2. Purpose and Benefits

This DSA covers information sharing between councils, the Metropolitan Police, the City of London Police, and London Probation Services for YOS- Youth Offending Services. The scope described in sections 1 and 1.6 explain the information sharing that is covered by this agreement - that is information shared between councils' YOS, the Metropolitan Police, the City of London Police, and London Probation Services in respect of Youth Offending Services. This includes preventative measures, interventions, referrals, transfer to Adult Probation Service, and assessments.

Research and experience have demonstrated the importance of information sharing across professional boundaries to ensure effective delivery of YOS, better outcomes for young people and protection of the public. Lack of data sharing results in poor outcomes, including greater exposure of young people to danger and exploitation, increased crime, more victims and less public safety. Information viewed alone or in silos may not give the full picture or identify the true risk. All the information from various agencies needs to be available and accessible to relevant agencies in one place; to keep young people and members of the public safe and assist signatories to this Agreement in discharging their obligations under the relevant legislation that covers delivering YOS.

To deliver the best decisions that ensure timely, necessary and proportionate interventions, local authority decision makers need the full information picture concerning a young person, other relevant individuals and their circumstances to be available to them. The police who provide intelligence to the local authority on YOS matters need appropriate information in order to make fully informed and evidenced representations, and to fulfil their law and order responsibilities effectively. Police who may be called to deal with urgent issues regarding youth offending may need timely and up-to-date information to effectively handle such matters.

Young offenders often find themselves in complex situations, causing them to be vulnerable to external influences. In order to provide a comprehensive service, YOS professionals need to respond in real-time with up-to-date information. The Police share intelligence with local authorities on criminal behaviour and activities, e.g. carrying weapons and key information needs to be shared by various YOS professionals to take appropriate action.

In order to act collectively and work effectively with young offenders, sharing information is crucial to piecing together the whole picture and providing the right support, protection and justice outcomes.

2.1. Benefits

The benefits of this DSA are to achieve a more comprehensive, joined up and efficient method for both police and councils to deliver their YOS work using up-to-date, relevant and timely information. It will also:

- Cover the sharing of information for welfare and criminal justice purposes.
- Remove barriers to effective information sharing.
- Sets parameters for sharing personal data and clearly identifies the responsibilities of organisations.
- Identify the correct lawful basis to share personal information.
- Ensure information is shared whenever there is a requirement to do so.
- Enables authorities to share data on performance, quality assurance, learning and impact analysis.
- Raises awareness amongst the signing partners of the key issues relating to information sharing and gives confidence in the process of sharing information with others.
- Provide better understanding between professionals.
- Greater efficiencies in processes and resources.
- Preventing and detecting crime.
- Effectively dealing with public safety concerning YOS related matters
- Ensuring the most appropriate outcome is achieved.

2.2. Principles of information sharing

Effective information sharing is a vital element of service delivery which is fit for purpose supporting YOS decisions and enforcement. Parties can hold different pieces of information which need to be placed together to enable a thorough assessment and plan to be made.

To share information, a lawful basis for doing so must be identified. This may come from legislation or from statutory guidance.

The sharing of personal data must comply with both the GDPR Principles and the Caldicott Principles, listed at Appendix B. Together, those principles lead to a series of questions and considerations to be answered before sharing takes place. These are listed as an Information Sharing Checklist in *Appendix D: Information Sharing Checklist.*

2.3. Lawful Basis

The sharing of information must comply with the law relating to confidentiality, data protection and human rights. Having a legitimate purpose for sharing information is an important part of meeting those legal requirements. This is a complex area and each Partner must take their own decisions and seek advice from their organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian.

Councils sharing information under this DSA with the Metropolitan Police and or Probation Services do so under the Crime and Disorder Act 1998 and therefore operate under Part 3 of the Data Protection Act 2018.

Where councils share information with other organisations for YOS purposes such as safeguarding they will operate under Part 2 of the Data Protection Act 2018. That sharing is outside this DSA and is covered in for example the MAS, Adults Safeguarding, Gangs, and or ASB DSAs. References should

be made to those DSAs for the relevant lawful basis and terms and conditions for sharing under those agreements.

For the purposes of law enforcement by competent authorities

The "competent authorities" are defined in Section 30 of the DPA which refers to Schedule 7. The competent authorities under this agreement are police, probation services and youth offending teams.

The "law enforcement" purposes are defined in Section 31 of the DPA as "*prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security".*

The processing under this DSA is for law enforcement purposes.

s35(2) DPA says that the processing of personal data for any of the law enforcement purposes is only lawful where it is based on law and either the data subject has given consent to the processing for that purpose, or the processing is necessary for the performance of a task carried out for that purpose by a competent authority. The law is provided in Appendix C. Data subjects do not provide consent for this processing. However the processing is necessary to perform the tasks of the parties in respect to their roles as set out in this DSA.

There are additional safeguards required for "sensitive processing". This is defined in Section 35(8) as:

(a) the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs or trade union membership;

(b) the processing of genetic data, or of biometric data, for the purpose of uniquely identifying an individual;

(c) the processing of data concerning health;

(d) the processing of data concerning an individual's sex life or sexual orientation.

The data processed under this DSA will include sensitive processing.

The additional alternative requirements are given in Section 35(4) and (5). Both require an appropriate policy document, and this document will form part of the policy for such processing, although competent authorities will need to satisfy themselves that their own internal policy documents fully cover such use.

Section 35(4) requires the consent of the data subject. That is not applicable in this case. 35(5) requires that the processing be strictly necessary for the law enforcement purposes, and meets a condition in Schedule 8.

Strict necessity

Although it is difficult to anticipate all the circumstances in which sharing under this agreement may be necessary, in general competent authorities do not consider that there are any other less intrusive means of obtaining personal data held by partners.

The reasons for the necessity of sharing personal data is set out in Sections 2 and 2.1 (above).

Schedule 8 conditions

The following conditions set out in Schedule 8 of the DPA 2018 are likely to be satisfied, depending on the precise context of the data processing:

Paragraph 1: Statutory etc purposes

This condition is met if the processing—

(a) is necessary for the exercise of a function conferred on a person by an enactment or rule of law, and

(b) is necessary for reasons of substantial public interest.

The processing of the data is carried out in the exercise of the legal powers and duties of the MPS. It is plainly in the substantial public interest that for example witness, victims and potential suspects are located as soon as reasonably practicable by the police.

Paragraph 3: Protecting individual's vital interests

This condition is met if the processing is necessary to protect the vital interests of the data subject or of another individual.

This condition is met in cases where there is a risk to the life of the data subject or where the data subject poses a threat to the life of either his or herself or the life of others. This may be the case where the police consider that a victim faces an ongoing risk of harm.

Paragraph 4: Safeguarding of children and of individuals at risk

(1) This condition is met if—

(a) the processing is necessary for the purposes of—

(i) protecting an individual from neglect or physical, mental or emotional harm, or

(ii) protecting the physical, mental or emotional well-being of an individual,

(b) the individual is—

(i) aged under 18, or

(ii) aged 18 or over and at risk,

(c) the processing is carried out without the consent of the data subject for one of the reasons listed in sub-paragraph (2), and

(d) the processing is necessary for reasons of substantial public interest.

(2) The reasons mentioned in sub-paragraph (1)(c) are—

(a) in the circumstances, consent to the processing cannot be given by the data subject;

(b) in the circumstances, the controller cannot reasonably be expected to obtain the consent of the data subject to the processing;

(c) the processing must be carried out without the consent of the data subject because obtaining the consent of the data subject would prejudice the provision of the protection mentioned in sub-paragraph (1)(a).

(3) For the purposes of this paragraph, an individual aged 18 or over is "at risk" if the controller has reasonable cause to suspect that the individual—

(a) has needs for care and support

(b) is experiencing, or at risk of, neglect or physical, mental or emotional harm, and

(c) as a result of those needs is unable to protect himself or herself against the neglect or harm or the risk of it.

(4) In sub-paragraph (1)(a), the reference to the protection of an individual or of the well-being of an individual includes both protection relating to a particular individual and protection relating to a type of individual.

This condition is met where the child or vulnerable adult is at risk of harm (whether physical or mental), and the police are unable to obtain consent for any of the reasons listed in para 4(2). This condition will be met in most cases given the remit of YOS.

The terms of this agreement address the requirements for data sharing pursuant to Part 3 of the DPA 2018.

To note that there is a separate regime for intelligence service processing, which falls outside the remit of this DSA.

2.4. Consent

The parties will often work collaboratively with data subjects and aim for agreement with them on the actions to be taken. However, it is recognised that this is different to using consent as the lawful basis conditions used for processing under this agreement.

Consent is not generally the lawful basis the public sector organisations use for processing information shared under this agreement. It is noted that where consent is not the lawful basis for processing, consent does not need to be sought to share, and thus the concept of "overriding consent" is a misconception. The parties have statutory roles to fulfil in this area and sharing between them does not require the data subjects' consent.

It is noted that there may be sharing for other purposes outside this DSA and reference should be made to other relevant DSAs for the relevant sections on consent for those.

2.5. Proportionality and necessity

Proportionality, data minimisation, necessity and not being excessive are factors to be taken into consideration when deciding whether to share personal information. In making the decision, employees must weigh up what might happen as a result of the information being shared against what might happen if it is not, and apply their professional judgement. It is for this reason professionals must ensure they comply with the third data protection principle in Part 3 DPA and ensure that personal data processed for any of the law enforcement purposes must be adequate, relevant and not excessive in relation to the purpose for which it is processed.

Although sharing of information can impact on a practitioner's relationship with an individual/family, compliance with the relevant legal requirements must be met. Professionals must record:

- the decision to share, or not to share
- the lawful basis for sharing
- to whom the information was shared

This will enable the Data Controller to account for decisions made.

2.6. Other relevant legislation

The actual disclosure of any personal data to achieve these objectives must also be conducted within the framework of the Human Rights Act 1998 (HRA) and the Common Law Duty of Confidence. Caldicott Principles also apply to all information sharing and they are listed in Appendix B: Data Protection & Caldicott Principles.

2.7. Common Law Duty of Confidence

Much of the police information to be shared will not have been obtained under a duty of confidence as it is legitimately assumed that data subjects will understand that police will act appropriately with regards to the information for the purposes of discharging their statutory duties.

However, for the police, as a safeguard before any information is passed on, it will undergo an assessment check within relevant policies. The assessment and decision making will require the police

to comply with Part 3 of the Data Protection Act, relying on section 37 to share adequate, relevant and not excessive information for the law enforcement purpose. This will allow the police to confidently share information for the protection of children or other vulnerable persons, to fulfil a legal obligation and/or legitimate interest pursued by the police.

Information held by other agencies that will be shared may have been gathered where a duty of confidence is owed. Duty of confidence is not an absolute bar to disclosure as information can be shared where there is a legal duty to do so.

When overriding the duty of confidentiality, the parties may seek the views of the organisation who hold the duty of confidentiality and consider their views in relation to breaching confidentiality. The organisation may wish to seek legal advice if time permits.

2.8. Freedom of Information

The Freedom of Information Act 2000 gives all individuals the right to access official information held by a public authority (the Environmental Information Regulations 2004 also allow access to environmental data. For ease of drafting, FOI is used to cover both legislation). Limited exemptions may apply and all public authorities must ensure they have recognised procedures in place for administering requests of this nature.

All requests for FOI will be directed through the relevant organisations' FOI processes. Each party will seek advice/opinion from the other parties where there is concern about that information being released and any impact it is likely to have. The final decision to disclose or not will lie with the party who holds the information (data controller).

It is encouraged that all parties proactively publish this document. It may also be disclosed to the public under FOI.

3. Individuals

Organisations processing personal data are required to begin with the ethos of Data Protection by Design and Default (also known as Privacy by Design (PbD)). This means that we must consider and uphold the privacy of an individual's data before we begin and throughout the processing taking place.

Each party agrees that they have undertaken a DPIA (Data Protection Impact Assessment), where they feel the processing meets the legislative criteria for a DPIA.

3.1. Right to be informed – Privacy notices

Where personal data is created or received by one of the parties, they are responsible, as required by law, for making the data subject(s) aware within a reasonable time frame that the organisation holds the data, what they will do with it, how long they will keep it, and who they will share it with (such as under this DSA). This is normally done through a privacy notice, whether written or verbal. Organisations agree that they will adhere to the transparency requirements of the UK GDPR and will issue appropriate notices which inform the data subject that the information will be shared with the parties under this agreement.

In some cases, it may not be appropriate to let a person know that information about them is being processed and shared. Consideration should be given to whether notifying the individual may place

someone at risk or prejudice a police, other criminal, or safeguarding investigation. In these circumstances, the parties need not inform individuals that the information is being processed/shared; but should record their reasons for sharing information without making the individual aware.

3.2. Data subject rights requests and complaints

Each organisation must have in place appropriate policies and processes to handle data subject requests made in line with data protection law, to ensure they are responded to within deadline and in an appropriate manner. Requests include; right of access, right to rectification, right to erasure, right to restrict processing, right to data portability, right to object and rights related to automated decision making including profiling.

If an individual successfully requests the erasure or limitation of use of their data (right to erasure, right to rectification, right to restrict processing, right to object), the party that has been informed by the data subject will communicate this to the other parties where relevant and appropriate. In each case each party is responsible for securely disposing of such information or limiting its processing.

Each party must have clear, fair and objective complaint procedures. Any complaints from individuals how their data is being processed or shared will be handled under the policy and processes of the organisation concerned.

3.3. Data subjects

There is a breadth of data subjects whose data is shared under this agreement. The data subjects include, but are not limited to, the following:

- young people (aged 18 and under)
- family members, friends, acquaintances and known contacts of young people
- responsible persons, (e.g. carers, teachers, social workers, police officers)
- professional advisers or consultants (e.g. doctor, lawyer)
- complainants and witnesses making representations against, in favour of, or neutrally, in respect of youth offending, noting that restorative justice is excluded from the scope of this DSA
- people captured on CCTV, Body Worn Video, or similar, noting that there is a separate DSA for CCTV data sharing which will cover this sharing

Some of the data subjects are vulnerable. Parties to this agreement are in positions of power over data subjects and data subjects have little or no control over why and how their data is processed.

4. Data

The personal data and its processing involved in these workstreams is extensive, highly sensitive and at times intrusive. There is a high volume of data and data subjects.

Anonymisation or pseudonymisation will rarely be possible because of the way the work focuses on YOS, although any statutory returns, workforce planning and management reports should be anonymised if possible.

Information will include:

- **Personal, special category and criminal data** to enable the effective interventions, referrals and assessments of youth offending and of all those affected in the borough
- **Personal, special category and criminal data** for law enforcement purposes, including data defined as **sensitive data** for the competent authorities for law enforcement purposes
- **Aggregated (anonymised or pseudonymised) data** reporting to enable the parties to further understand the YOS priorities.
- **Aggregated (anonymised or pseudonymised) and personal data** regarding YOS and employees in relation to learning reviews and workforce development.
- **Personal and anonymised data** required for statutory returns.

4.1. The data to be shared

Due to the complexity of the YOS provision, providing a prescriptive list of data fields to be shared is difficult. Not all the information listed will be shared in every case; only relevant information will be shared on a case-by-case basis where an organisation and/or certain individual officers within that organisation 'need-to-know' the information.

Data that will be shared includes but is not limited to:

- name and contact details
- age/date of birth
- equalities information
- education or employment information
- details regarding personal life, habits and lifestyle
- family and close contacts information
- health and wellbeing information
- vulnerability information
- location information
- people with whom the young person may be in conflict with or at risk from
- danger and exploitation indicators
- criminal information on relevant allegations, criminal justice proceedings and convictions, relevant police information and intelligence
- any other relevant information that needs to be shared in real-time to protect the general public from crime and disorder

Information out of scope of this DSA:

- information shared for safeguarding purposes which are covered by the MAS and Adult Safeguarding DSAs
- images in photographs, film or CCTV which are covered by the CCTV DSA
- Information shared for restorative justice purposes which require explicit consent and are subject to other processes

4.2. Deceased persons

The sharing is unlikely to involve data of deceased persons, but where it does it is noted that this data will not be covered by data protection legislation but will still require due regard to the common law duty of confidentiality and the Human Rights Act.

4.3. Confidential information

In this agreement, we refer to personal data, as defined by data protection legislation. However, the word 'confidential' may be used by individuals and practitioners to describe information and can mean different things to different people.

Confidential can mean:

- Personal and special category data as defined by data protection legislation
- Patient Identifiable Information (PII) or 'personal confidential information'; both terms most commonly used in health settings
- Information which is not already lawfully in the public domain or readily available from another public source
- Information that has been provided in circumstances where the person giving the information could reasonably expect that it would not be shared with others.

4.4. Storing and handling information securely

Information must be stored and shared lawfully and securely. Special category data may need a higher level of security. The employee/organisation sharing the information must choose the most appropriate secure method of transfer and be responsible for its safe delivery.

Electronic records:

Organisations may have different electronic methods for storing and sharing information securely. Some have local restrictions which block access to information shared using specific tools.

Parties must make sure the chosen method is suitably secure and that access is only provided to those who need it, and only to the data needed.

Unencrypted email (i.e. sent in plain text over the public internet) must not be used to share information under this DSA.

Sharing methods that may be appropriate include:

- **Email encryption tools** where the email and attachments are encrypted from named sender to named recipient (e.g. Microsoft 365 Message Encryption; Egress Protect)
- **Encryption via Transport Layer Security** (TLS) where the email and attachments are encrypted in transit over the internet. Both the sender and recipient email domains must have TLS enabled. This can be checked using https://www.checktls.com/
- **Secure corporately managed data repository and sharing platforms** (e.g. MS Teams; Google Docs)
- **Secure group email services** (e.g. CJSM: https://cjsm.justice.gov.uk/index.html)
- **Secure File Transfer Protocols**
- **Virtual Private Networks**

The above are examples, get advice from your organisation's information security or IT teams on secure methods of sharing available at your organisation and document these in the organisation's process documents.

Phone/virtual meetings/face-to-face meetings:

Information may be shared over the phone, in a virtual meeting, or at face to face meetings. Meeting attendance and distribution of content, e.g. meeting minutes or recordings, must be limited to those with a need to know.

Sharing by telephone should be avoided unless the requirement is urgent and email is not practicable.

Individuals should be aware of their surroundings and the presence of other individuals or voice recognition or 'Internet of Things' devices (e.g. virtual assistant apps like Alexa, Cortana, SIRI) to ensure they aren't overheard by those that should not have access to the information discussed.

Paper records:

Printed paper records must always be kept to a minimum and kept secure whether in the office, home or during transit. Organisations must adopt an appropriate policy surrounding the use and transfer of paper records. Appropriate security methods must be applied when storing or disposing of paper records.

4.5. Access controls and security

All parties will ensure that they have appropriate technical and organisational security measures in place to guard against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data.

All personal data held by partner organisations electronically will be stored in a secure network area with password protected entry and appropriate back-up functionality. The systems will be auditable so that it is possible for any auditor to establish who has accessed the system. All laptops, computers, and any other portable devices will be encrypted.

Any individual no longer required to have access will promptly have such access revoked by the line manager and Human Resources related to the relevant employer.

There is an expectation that partner organisations will either be working toward ISO 27001, the International Standard for Information Security Management, or a similar standard of security, such as NHS Digital's Data Security and Protection Toolkit (DSPT) and Cyber Essentials or Cyber Essentials Plus.

4.6. Outside UK processing

Parties are responsible for ensuring that if information is processed or shared outside the UK,that appropriate safeguards are in place and on condition that enforceable data subject rights and effective legal remedies for data subjects are available. These are for example, a legally binding and enforceable instrument between public authorities or bodies, binding corporate rules, and/or standard data protection contractual clauses.

4.7. Data quality

Each partner is responsible for ensuring the accuracy and relevance of the personal data that it processes and shares and must have clear processes in place for managing data quality.

Any party learning of the inaccuracy of personal data is responsible for informing the parties with whom that data has been shared.

4.8. Data breaches/incidents

All parties must have a clear policy and procedure regarding the reporting and handling of data protection breaches or data loss incidents. This must include assessing the level of risk to the data subject(s), as well as to make a decision on notifying the ICO within the statutory time frame of 72 hours. This complies with Section 67 and 68 of the DPA 2018 for personal data processed for law enforcement purposes.

If the incident may impact the processing of another party to this agreement, all relevant parties should be informed and appropriate coordination of the incident must take place. The decision to report the incident will lie with the data controller(s) of the information concerned. The parties agree to provide all reasonable and necessary assistance at their own expense to each other to facilitate the handling of any personal data breach in an expeditious and compliant manner.

It is confirmed that security breaches (including misuse or unauthorised disclosure) are covered by the partner's internal disciplinary procedures. If misuse is found there should be a mechanism to facilitate an investigation, including initiating criminal proceedings where necessary.

4.9. Retention and Disposal

Organisations are required by data protection legislation to document processing activities for personal data, such as what personal data is held, where it came from and with whom it has been shared. This Record of Processing Activity (ROPA) must include the retention period for the data.

Information must not be retained for longer than necessary for the purpose for which it was obtained. Disposal or deletion of personal data once it is no longer required, must be done securely with appropriate safeguards, in accordance with that organisation's disposal policies.

5. Signatures

Local Authorities and Probation Services signing this DSA will do so via a centralised electronic system rather than physically signing a document

For the Metropolitan Police:

……..

Name……

Rank ……

Date……

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Version control	
Document production date	March 2022
Version	1.0

6. Appendix A Parties to this agreement

Organisation	Duties
London Borough Council	• Co-ordinates, gathers, processes, risk assesses and shares information held in conjunction with information received from partner agencies to provide YOS. • Co-ordinates, gathers, processes, risk assesses and shares information held in conjunction with information received from partner agencies to achieve common goals pan-London. • Allocates resources in accordance with YOS. • Holds YOS committees where necessary.
Metropolitan Police Service and City of London Police Service	• Co-ordinates, gathers, processes, risk assesses and shares police information relevant to YOS. • Co-ordinates, gathers, processes, risk assesses and shares police information relevant to preventing and detecting crime and maintaining public safety.
Probation Service	• The Probation Service is a statutory criminal justice service that supervises high-risk offenders released into the community.

7. Appendix B Data Protection & Caldicott Principles

The Principles as described in Part 3 of the Data Protection Act 2018

1 the processing of personal data for law enforcement purposes must be lawful and fair.

2 the law enforcement purpose for which personal data is collected on any occasion must be specified, explicit and legitimate, and personal data so collected must not be processed in a manner that is incompatible with the purpose for which it was collected.

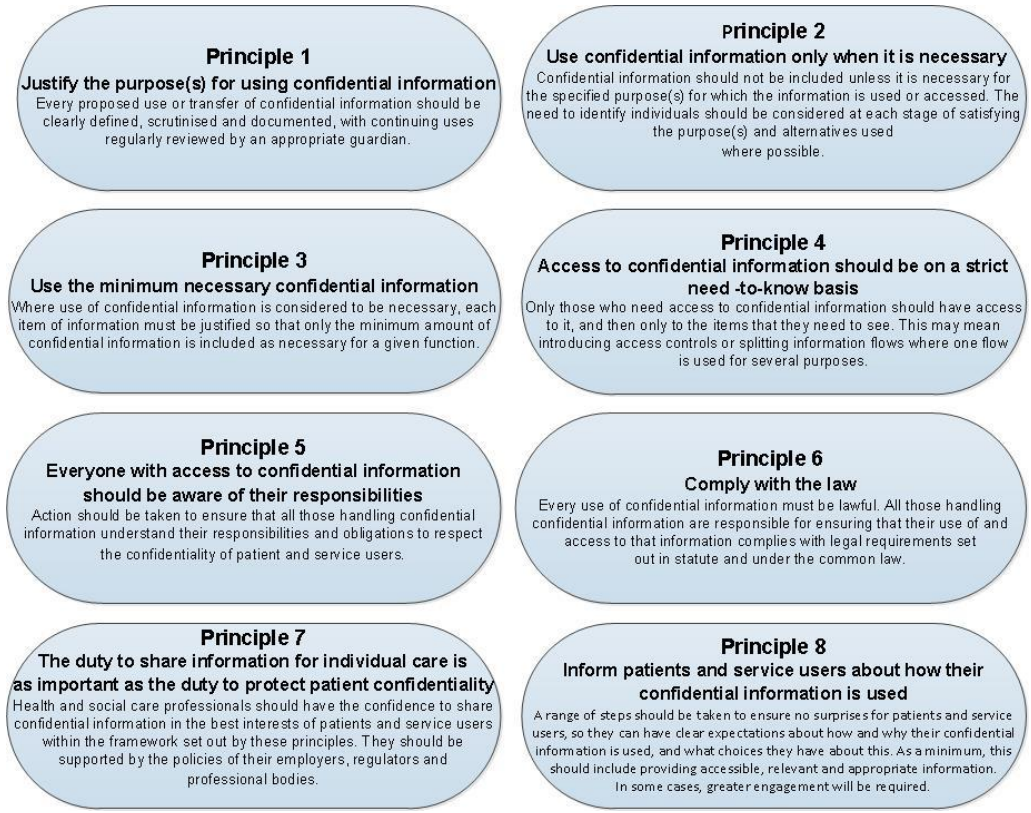
3 personal data processed for any of the law enforcement purposes must be adequate, relevant and not excessive in relation to the purpose for which it is processed.

4 personal data processed for any of the law enforcement purposes must be accurate and, where necessary, kept up to date, and every reasonable step must be taken to ensure that personal data that is inaccurate, having regard to the law enforcement purpose for which it is processed, is erased or rectified without delay.

5 personal data processed for any of the law enforcement purposes must be kept for no longer than is necessary for the purpose for which it is processed.

6 personal data processed for any of the law enforcement purposes must be so processed in a manner that ensures appropriate security of the personal data, using appropriate technical or organisational measures

The Caldicott Principles



8. Appendix C Applicable legislation and guidance

Legislation	Main purpose of Legislation
Offender Management Act 2007 (s14)	Section 14 of the Offender Management Act 2007 sets out the powers of certain bodies to share data for specified purposes which include: • The probation purposes (section one Offender Management Act 2007) • The performance of the functions relating to prisons or prisoners (inc young offender institutions and secure training centres, together with those persons detained within them); • Any other purpose connected with the management of offenders (including the development or assessment of policies relating to matters connected with the management of offenders).
The Crime and Disorder Act 1998	Each LA in England & Wales has the responsibility to formulate a strategy to reduce crime and disorder in their area and to work with police authorities to do this.
Legal Aid, Sentencing and Punishment of Offenders Act 2012	Streamlined youth justice processes, covers out of court disposals and includes sentencing framework, aims to prevent offending escalating Sets up out of court disposal panel where initial decision made about young people's sentencing.
Antisocial Behaviour, Crime and Policing Act 2014	Covers closure orders and closure notices of any premises
The Criminal Justice Act 2003	This act amended a wide range of provisions in the PACE act and provided new regulations on offence management, disclosure and trials. The Act clarifies the process and procedure for police and their legal basis for use.
The Police and Criminal Evidence Act 1984	This act makes the specific provision for the secretary of state to issue codes of practice to police with statutory effects. It provides the basis for many of the police actions in respect of matters relating to safeguarding and other matters, and as such provides their legal basis for use.
The Children Act 1989	Under S.47 of the Children's Act 1989, a Local Authority has a duty to investigate when informed that a child in their area is in police protection or the subject of a protection order. This Act provides specific powers giving a legal basis under Section 8 of the DPA for this use.

Legislation	Main purpose of Legislation
The Children Act 2004	Under Sections 10 and 11 of the Children Act 2004, the police, local authorities and primary care trusts must cooperate with other relevant partners to safeguard and promote the welfare of children and ensure that arrangements are made to improve the wellbeing of children in their area. This regulation provides a general safeguarding and welfare power giving a legal basis under Section 8 of the DPA for this use

Guidance	Main purpose of Guidance
London Child Protection Procedures 2018	The London Child Protection Procedures sets out the procedures which all London agencies, groups and individuals must follow in identifying, raising and responding to welfare concerns when coming into contact with or receiving information about children 0 to 17 years, including unborn children and adolescents up to their 18th birthday This provides the policy document required for the safeguarding purposes under Schedule 1 Part 2, para 18 of the DPA for various London bodies.
Working Together to Safeguard Children 2018	Local authorities, working with partner organisations and agencies, have specific duties to safeguard and promote the welfare of all children in their area. The Children Acts of 1989 and 2004 set out specific duties: section 17 of the Children Act 1989 puts a duty on the local authority to provide services to children in need in their area, regardless of where they are found; section 47 of the same Act requires local authorities to undertake enquiries if they believe a child has suffered or is likely to suffer significant harm. This provides the policy document required for the safeguarding purposes under Schedule 1 Part 2, para 18 of the DPA for national bodies.

9. Appendix D Information Sharing Checklist

The following questions must be considered when deciding whether to share information.

- Whose information is this?
- Is there a lawful basis to share the information? Justify the purpose and identify relevant legislation that applies.
- Can information be pseudonymised or anonymised ahead of sharing?
- How have individuals been informed that the information will be shared eg via a privacy notice? Will they have the expectation that their information will be shared? Consider whether notifying the individual of the sharing may place someone at risk or prejudice a police or safeguarding investigation.
- Have any requests not to share been received and considered?
- How much information is it necessary to share in this situation?
- Is the information accurate and up to date? Has the difference between fact and opinion been stated?
- Is access to the information limited to only those who need it? Is it being given to the right person?
- Is the information being shared in a secure way?
- Has the decision to share or not share been recorded?